



Petition for Expungement of Arrest Records

IN THE _____ JUDICIAL CIRCUIT, Greene COUNTY, MISSOURI

Judge: _____

Case Number: 2023CR004182

Court ORI No.: _____

Marion T. Ellsworth

vs.

Petitioner

(Date File Stamp)

Defendant(s):

- | | |
|---|--|
| ☐ Circuit Court Division _____ | ☐ _____ County Sheriff's Dept. |
| ☐ Associate Court Division _____ | ☐ _____ Municipal Police Dept. |
| ☐ Municipal Court Division _____ | ☐ _____ Missouri Highway Patrol Troop |

☐ Criminal Records Repository

Prosecutor's Office (include name of county or city)

☐ County _____

☐ Municipal _____

☐ Other (include name and address of agency):

Pursuant to section 610.122, RSMo, I request that the court issue an order to expunge my record of arrest, for the following criminal case: 2023CR004182

☐ I am filing this petition in the county where the arrest occurred and I did not receive a suspended imposition of sentence (SIS) for the offense for which the arrest was made or for any offense related to the arrest. I also state that the arrest was based on false information; there is no probable cause at the time of the action to expunge to believe that I committed the offense; no charges will be pursued as a result of the arrest; and no civil action is pending relating to the arrest or the records sought to be expunged. I am providing my fingerprints on a standard fingerprint card for verification of my identity.

☐ I am filing this petition in the county where the arrest occurred. I was arrested for, or was subsequently charged with, a misdemeanor offense of chapter 303 or a moving violation as the term "moving violation" is defined under section 302.010, RSMo, except for any intoxication-related traffic or boating offense as "intoxication-related traffic offense" and "intoxication-related boating offense" are defined under section 577.001, RSMo; and each offense or violation related to the arrest was subsequently nolle prossed or dismissed, or I was found not guilty of each offense or violation; I am not a commercial driver's license holder and was not operating a commercial motor vehicle at the time of the arrest; and no civil action is pending relating to the arrest or the records sought to be expunged. I am providing my fingerprints on a standard fingerprint card for verification of my identity.

I have reason to believe the agencies named above as defendants may possess records subject to expungement.

Full Name Marion T. Ellsworth Sex ☐ M ☐ F Race _____

Date of Birth 1988-04-17 Social Security Number _____ Driver's License Number _____

Address at Time of Arrest 418 Sycamore Ridge Road Offense Charged _____

Date of Arrest _____ Arrest Citation Number C-2023-77140 If criminal charges were filed, date of dismissal or reversal _____

County where Petitioner was arrested
(if Arrest Occurred in a Municipality,
also Name Municipality)

Greene

Name of Arresting Agency _____

Case Number and Division of Court of the Offense

☐ Circuit ☐ Associate ☐ Municipal
Division _____

2023CR004182

☐ Not Applicable

I swear the facts stated in the above petition are true according to my best knowledge and belief.

Petitioner's Signature/Address

Subscribed and sworn to before me this _____ day of _____, _____

My commission expires: _____

Notary Public/Judge/Clerk

Instructions to Clerk

1. A copy of the petition shall be issued to the prosecuting attorney.
2. A copy of the petition and the fingerprint card should be sent to the Missouri Criminal Record Repository.
3. Give notice of the hearing to the prosecuting attorney and each official, or agency, or other entity named in the petition.